

****28.03.2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed in March 2022 an investigation into the operator Condor SA and found a violation of the provisions of Article 32 paragraphs (1), (2), and (4) of the General Data Protection Regulation.

As such, the operator was sanctioned with a fine of 9,897.4 lei (equivalent to 2,000 EURO).

The investigation was initiated following a complaint alleging that the operator Condor SA disclosed personal salary-related data of employees or former employees of this operator to unauthorized persons.

During the investigation, it was found that there was unauthorized access to certain unencrypted documents containing a series of personal data of employees or former employees, such as: workplace, name, surname, position, salary, advance amount, bank account, personal identification numbers.

Consequently, the National Supervisory Authority found that the operator Condor SA did not provide evidence that it had adopted sufficient technical and organizational measures to ensure the confidentiality of the processed personal data of its employees or former employees.

Additionally, it was noted that the operator did not provide evidence of training for the individuals processing data under its authority, which led to the unauthorized access to certain documents.

Thus, the provisions of Article 32 paragraphs (1), (2), (4) of the General Data Protection Regulation were violated.

At the same time, during the investigation, the operator was also subjected to two corrective measures, as follows:

1. The corrective measure to ensure compliance with the General Data Protection Regulation for the processing operations of personal data, by implementing appropriate technical and organizational measures, including regarding the training of individuals processing data under its authority;
2. The corrective measure to ensure compliance with the General Data Protection Regulation for the processing operations of personal data, by contacting the person who had unauthorized access to the respective personal data, for the purpose of deleting or destroying, as appropriate, such data.

****Legal and Communication Directorate****

****N.S.A.P.D.C.P.****